



January 8, 2026

HOUSE BILL No. 1266

DIGEST OF HB 1266 (Updated January 7, 2026 1:00 pm - DI 110)

Citations Affected: IC 10-21; IC 20-19; IC 20-20; IC 20-28; IC 20-30; IC 20-31; IC 20-32; IC 20-36; IC 20-38; IC 20-43; IC 20-46; IC 20-51; IC 20-51.4; IC 21-18; IC 21-18.5; IC 34-30; noncode.

Synopsis: Department of education and education matters. Makes various changes to education provisions concerning the following: (1) Schools eligible for grants from the Indiana secured school fund, teacher appreciation grants, grants under the robotics competition program, and funding for certain advanced placement examinations. (2) Creating and updating a list of employers that have agreed to provide career support for or interview Indiana residents who graduate with an Indiana diploma with an employment honors plus seal. (3) Creating a teaching and learning framework for the implementation of mathematics academic standards. (4) Development of a data science math pathway. (5) Establishing a process and strategies to support academic and fiscally underperforming schools, development of a plan to intervene, and submission of the process and plan to the general assembly. (6) Evaluating, approving, and publishing high quality curricular materials time lines. (7) Local board membership for a local centralized school facilities board and local student transportation board. (8) Salary differentiation regarding teachers who possess a literacy endorsement. (9) Amounts expended in participating in an interlocal cooperative included in determining amounts school corporations expend on full-time teacher salaries for purposes of teacher salary minimum funding requirements. (10) Summer school program and reimbursement administration. (11) Criteria required for eligibility of a waiver for conducting four day school weeks. (12) Oversight of career and technical education program designation. (13)
(Continued next page)

Effective: Upon passage; July 1, 2026.

Behning, McGuire

January 6, 2026, read first time and referred to Committee on Education.
January 8, 2026, amended, reported — Do Pass. Referred to Committee on Ways and Means pursuant to Rule 126.3.

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Digest Continued

Uses of teacher appreciation grants. (14) The calculation of school safety referendum distributions to charter schools with regard to virtual instruction. (15) Petitions regarding reconsidering payments of choice scholarships. (16) Eligibility for teacher appreciation grants by the department of correction. (17) Membership of the board for proprietary education. (18) The effective date regarding the changes to the definition of "eligible choice scholarship student". (19) Career specialist permit eligibility. Provides that an emergency permit may be renewed up to two times to an individual enrolled in an alternative teacher certification program if the program provides documentation verifying the individual's good standing in the program to the department of education. Creates a new qualification option for a transition to teaching program participant who seeks to obtain a license to teach in grades 5 through 12. Joins the interstate teacher mobility compact. Provides that: (1) state accredited nonpublic schools; and (2) nonpublic schools that are accredited by a national or regional accreditation agency that is recognized by the state board of education; are eligible to participate in the teacher residency grant pilot program. Removes a provision that provides that the department may not release less than 10 items per subject matter level per grade level regarding the statewide summative assessment. Removes a requirement that for a parent or student to use a career scholarship account (CSA) annual grant amount for costs related to transportation a CSA participating entity must pay a matching amount for the transportation costs. Repeals certain provisions concerning postsecondary career and technical education.



January 8, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1266

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 10-21-1-1, AS AMENDED BY P.L.150-2023,
2 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 1. The following definitions apply throughout this
4 chapter:
5 (1) "Accredited nonpublic school" means a nonpublic school that:
6 (A) has voluntarily become accredited under IC 20-31-4.1; or
7 (B) is accredited by a national or regional accrediting agency
8 that is recognized by the state board of education.
9 (2) "Active event warning system" refers to a system that includes
10 services and technology that will notify available law enforcement
11 agencies in the area of a school building of a life threatening
12 emergency.
13 (3) "ADM" refers to average daily membership determined under
14 IC 20-43-4-2. In the case of a school corporation career and
15 technical education school described in IC 20-37-1-1, "ADM"

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1 refers to the count on a full-time equivalency basis of students
2 attending the school on the date ADM is determined under
3 IC 20-43-4-2.

4 (4) "Board" refers to the secured school safety board established
5 by section 3 of this chapter.

6 (5) "Bullying prevention program" refers to a program that must
7 contain one (1) or more of the following components:

8 (A) Offers students and school personnel opportunities to
9 develop the skills and strategies to prevent bullying and
10 potential bullying situations in digital and physical spaces,
11 including the usage of research based models.

12 (B) Enables school personnel, including school safety
13 specialists, safe school committee members, and school
14 resource officers, to identify and acquire the programs,
15 technology software, resources, and training necessary
16 concerning the:

17 (i) development and implementation of bullying and
18 cyberbullying prevention programs and school violence,
19 human trafficking, and self-harm mitigation programs;

20 (ii) establishment of bullying and cyberbullying
21 investigation, intervention, and reporting procedures;

22 (iii) adoption of discipline rules that comply with
23 IC 20-33-8-13.5; and

24 (iv) integration of the program into wider school efforts,
25 including a school safety plan, to promote educational
26 progress and the physical safety and well-being of school
27 students, families, faculty, and staff.

28 (6) "County school safety commission" has the meaning set forth
29 in section 12 of this chapter.

30 (7) "Critical incidence digital mapping" means the digitized
31 mapping of a school building and school grounds to best assist
32 first responders in an emergency that must:

33 (A) include accurate floor plans overlaid on or current aerial
34 imagery of a school building or school plan with surrounding
35 school grounds;

36 (B) include site-specific labeling that matches:

37 (i) the structure of the school building, including room
38 labels, hallway names, room numbers, external doors,
39 interior doors, stairwell numbers, locations of hazardous
40 materials, key utility locations, key boxes, automated
41 external defibrillators, and trauma kits; and

42 (ii) the school grounds, including parking areas, athletic



- 1 fields, surrounding roads, and neighboring properties;
- 2 (C) be compatible with platforms and applications used by
- 3 local, state, and federal public safety agencies;
- 4 (D) be verified for accuracy through a walk through of a
- 5 school building and school grounds;
- 6 (E) not require the purchase of additional software for use;
- 7 (F) be accessible in a printable format;
- 8 (G) be shared with:
- 9 (i) the law enforcement agency and fire department that
- 10 have jurisdiction over the mapped school building; and
- 11 (ii) the statewide 911 system as described in
- 12 IC 36-8-16.7-22 through the public safety answer point, or
- 13 "PSAP", described in IC 36-8-16.7-20 that has jurisdiction
- 14 over the mapped school building; and
- 15 (H) be kept confidential and withheld from public disclosure.
- 16 (8) "Fund" refers to the Indiana secured school fund established
- 17 by section 2 of this chapter.
- 18 (9) "Law enforcement agency" refers to a state, local, or federal
- 19 agency or department that would respond to an emergency event
- 20 at a school, including both on duty and off duty officers within the
- 21 agency or department.
- 22 (10) "Multi-disciplinary threat assessment team" means a group
- 23 of individuals with expertise in school physical security, school
- 24 administration, educational instruction, youth counseling, mental
- 25 health and behavioral health, and law enforcement established by
- 26 the leadership of the school corporation or charter school that may
- 27 serve one (1) or more schools, that must meet the following
- 28 requirements:
- 29 (A) Be comprised of at least:
- 30 (i) a school safety specialist or an individual designated by
- 31 the school safety committee;
- 32 (ii) a member of a safe school committee;
- 33 (iii) a school building level administrator;
- 34 (iv) a school resource officer, if one (1) is either employed
- 35 by or assigned to the school corporation or charter school;
- 36 (v) an individual with expertise in special education; and
- 37 (vi) a school counselor or social worker.
- 38 (B) Conduct multi-disciplinary threat assessments that shall:
- 39 (i) provide guidance to students, faculty, and staff regarding
- 40 the recognition of threatening or aberrant behavior that may
- 41 represent a threat to the community, school, or self;
- 42 (ii) identify members of the school community to whom



threatening behavior should be reported;

(iii) establish procedures to assess, identify, and intervene with individuals whose behavior may pose a threat to the safety of school students, families, faculty, and staff; and

(iv) inform the adoption, implementation, and updating of policies adopted by the school corporation or charter school, including school safety plans and the policies of a safe school committee for a particular school.

(11) "Safe school committee" means a safe school committee established under section 14 of this chapter.

(12) "School corporation or charter school" refers to:

(A) an individual school corporation;

(B) a school corporation career and technical education school described in IC 20-37-1-1; or

(C) a charter school; ~~but also includes:~~

(D) a coalition of:

~~(A) (i) a coalition of school corporations;~~

~~(B) (ii) a coalition of charter schools; or~~

~~(C) (iii) a coalition of both school corporations and charter schools;~~

that intend to jointly employ a school resource officer or to jointly apply for a matching grant under this chapter, unless the context clearly indicates otherwise;

(E) the Indiana School for the Blind and Visually Impaired established by IC 20-21-2-1; or

(F) the Indiana School for the Deaf established by IC 20-22-2-1.

(13) "School official" refers to an employee of a school corporation, charter school, or accredited nonpublic school who has access to an active event warning system.

(14) "School resource officer" has the meaning set forth in IC 20-26-18.2-1.

(15) "School safety plan" means the school safety plan described in section 10 of this chapter.

(16) "School safety specialist" means a school safety specialist designated under section 9 of this chapter.

(17) "Site vulnerability assessment" means an examination of the physical safety, security, accessibility, and emergency preparedness of buildings and grounds.

(18) "Student safety management technology" refers to an information technology platform and related services to improve student safety by mitigating cyberbullying, school violence,



human trafficking, and self-harm.

SECTION 2. IC 20-19-3-41 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 41. The department shall create and update annually a list of employers that have agreed to provide career support for or interview Indiana residents who:**

(1) graduate with an Indiana diploma established under IC 20-19-2-21(c); and

(2) meet the diploma designation described in IC 20-19-2-21(e)(1) and the requirements for the designation under 511 IAC 6-7.2-21(b)(4).

SECTION 3. IC 20-19-3-42 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 42. (a) Not later than December 1, 2026, the secretary of education shall develop a data science math pathway that prepares students for emerging workforce demands.**

(b) This section expires July 1, 2027.

SECTION 4. IC 20-19-3-44 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 44. (a) Not later than December 1, 2026, the secretary of education shall do the following:**

(1) Establish a process and strategies to support academically and fiscally underperforming schools.

(2) Develop a support plan to intervene, as necessary, regarding schools described in subdivision (1).

(3) Submit a written report regarding the process and plan to the general assembly in an electronic format under IC 5-14-6.

(b) This section expires July 1, 2027.

SECTION 5. IC 20-20-5.5-2, AS AMENDED BY P.L.199-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2. (a) Not later than July 1, 2027, and each July 1 thereafter, The department shall evaluate, approve, and publish a list of high quality curricular materials for use in the following subjects and on the following timelines:**

(1) Not later than July 1, 2029, and every three (3) years thereafter, science.

(2) Not later than July 1, 2029, and every three (3) years thereafter, technology.

(3) Not later than July 1, 2029, and every three (3) years thereafter, engineering.

(4) Not later than July 1, 2027, and every three (3) years thereafter, math.



(5) **Not later than July 1, 2028, and every three (3) years thereafter,** English/language arts.

The department shall post the list approved under this subsection on the department's website.

(b) Subject to subsection (g), the department shall:

(1) determine the:

(A) process for evaluating and approving curricular materials under subsection (a); and

(B) requirements for curricular materials to be approved and included on the list described in subsection (a); and

(2) collaborate with teachers in evaluating and approving high quality curricular materials in English/language arts under subsection (a).

(c) The department shall publish ~~an annual~~ a report that describes the method used to conduct the evaluation required under subsection (a) and that contains the results of the evaluation. The report must do the following:

(1) Provide a list of each curricular material evaluated and a summary of the evaluation for each curricular material.

(2) Provide a listing and summary review for the high quality curricular materials approved by the department.

(3) Include any clarification or response from the publisher of a curricular material related to the department's summary review provided under subdivision (2).

(4) Include the written, exact, and standard statewide price provided by the publisher of the curricular material under subsection (e) for each high quality curricular material approved by the department under this section.

(d) A governing body and superintendent may use the list approved under subsection (a) in complying with IC 20-26-12-24.

(e) Before the department may approve curricular material for inclusion on the list under subsection (a), the publisher of the curricular material must:

(1) provide the department a written, exact, and standard statewide price for each curricular material; and

(2) enter into a data share agreement with the department in the manner prescribed by the department.

(f) A publisher may request that an update to the publisher's curricular materials and corresponding prices replace the information on the curricular materials set forth in the report under subsection (c).

(g) At a minimum, the process for evaluating curricular materials and the requirements for curricular materials to be approved and



included on the list described in subsection (a) must include the following:

- (1) The availability and use of benchmark, formative, interim, or similar assessments to identify students that require remediation and provide individualized instruction.
- (2) The incorporation of experiential learning opportunities.
- (3) An evaluation of the benchmark, formative, interim, or similar assessment data provided by the publisher of the curricular material pursuant to the data share agreement described in subsection (e).
- (4) The alignment of the curricular material to Indiana's academic standards developed by the department under IC 20-31-3-2.
- (5) The age appropriateness of the content.

~~(h) Not later than July 1, 2024, the department shall conduct a statewide survey to determine which curricular materials have been adopted for use in teaching science, technology, engineering, and mathematics in each state accredited school. Each state accredited school shall:~~

- ~~(1) participate in the statewide survey conducted under this subsection; and~~
- ~~(2) provide the information requested by the department as part of the statewide survey;~~

~~in the manner prescribed by the department. This subsection expires January 1, 2025.~~

SECTION 6. IC 20-20-5.5-3, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) The secretary of education shall notify the governing bodies of each school corporation, charter school, and state accredited nonpublic school immediately of:

- (1) the initial publication and ~~annual~~ update on the department's ~~Internet web site~~ **website** of the report described in section 2(c) of this chapter, including the ~~Internet web site~~ **website** address where the report is published; and
- (2) updates of the following types of information in the report described in section 2(c) of this chapter:
 - (A) The addition of materials.
 - (B) The removal of materials.
 - (C) Changes in the per unit price of curricular materials that exceed five percent (5%).

(b) A notification under this section must state that:

- (1) the reviews of curricular materials included in the report



described in section 2(c) of this chapter are departmental reviews only; and

(2) each governing body has authority to adopt curricular materials for a school corporation.

SECTION 7. IC 20-20-45.5-2, AS AMENDED BY P.L.64-2024, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. As used in this chapter, "eligible school" means: ~~or~~

(1) **a public school, including a charter school (as defined in IC 20-24-1-4);**

(2) **a state accredited nonpublic school; or**

(3) **a nonpublic school accredited by a national or regional accreditation agency that is recognized by the state board;**

(4) the Indiana School for the Blind and Visually Impaired established by IC 20-21-2-1; or

(5) the Indiana School for the Deaf established by IC 20-22-2-1.

SECTION 8. IC 20-20-52-6, AS ADDED BY P.L.232-2025, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Except as provided under subsection (e), ~~not later than October 31, 2025~~, a local centralized school facilities board is established for participating school corporations and schools.

(b) Each local board must be independent from any school corporation and school.

(c) The local board consists of ~~seven (7)~~ **an odd number of not less than five (5)** members:

(1) who represent a partnering community organization; or

~~(+)~~ **(2) who are:**

(A) members or designees of members of the governing body of a participating school corporation, or the equivalent for a participating charter school or nonpublic school; and

(B) proportionately appointed as either representatives of participating school corporations, charter schools, or nonpublic schools described in section 3(2) of this chapter based on:

~~(A)~~ **(i) the total pupil enrollment of the participating school corporations;**

~~(B)~~ **(ii) the total pupil enrollment of participating charter schools; and**

~~(C)~~ **(iii) the total pupil enrollment of participating nonpublic schools;**



that are partnering under the pilot program. and

~~(2) are members of the:~~

(A) governing body of a participating school corporation;

(B) charter school board of a participating charter school; or

(C) equivalent of a governing body for a participating nonpublic school;

described in subdivision (1).

(d) Each local board must collaborate with individuals or entities that have expertise in the following:

(1) Facility management, construction, or real estate.

(2) Public finance or public debt issuance.

(3) Demographic analysis and urban planning.

(4) Organizational effectiveness, operations management, and implementing best practices.

(5) Government contracts.

(6) Budget development and oversight.

(e) If a school corporation or school, in partnership with other school corporations, schools, or both other school corporations and schools, receives approval to participate in the:

(1) pilot program; and

(2) student transportation pilot program under IC 20-20-53;

the school corporation or schools may elect to establish ~~not later than October 31, 2025;~~ one (1) local centralized school facilities and transportation board consisting of the members described in subsection (c) that has the powers and duties and is subject to the requirements of a local centralized school facilities board under this chapter and local student transportation board under IC 20-20-53.

SECTION 9. IC 20-20-53-6, AS ADDED BY P.L.232-2025, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Except as provided under subsection (e), ~~not later than October 31, 2025;~~ a local student transportation board is established for participating school corporations and schools.

(b) Each local board must be independent from any school corporation and school.

(c) The local board consists of ~~seven (7)~~ **an odd number of not less than five (5)** members:

(1) who **represent a partnering community organization; or**

~~(+)~~ (2) who are:

(A) **members or designees of members of the governing body of a participating school corporation, or the equivalent for a participating charter school or nonpublic school; and**



(B) proportionately appointed as either representatives of participating school corporations, charter schools, or nonpublic schools described in section 3(2) of this chapter based on:

(A) (i) the total pupil enrollment of the participating school corporations;

(B) (ii) the total pupil enrollment of participating charter schools; and

(C) (iii) the total pupil enrollment of participating nonpublic schools;

that are partnering under the pilot program. and

(2) are members of the:

(A) governing body of a participating school corporation;

(B) charter school board of a participating charter school; or

(C) equivalent of a governing body for a participating nonpublic school;

described in subdivision (1):

(d) Each local board must collaborate with individuals or entities that have expertise in the following:

(1) Transportation logistics, particularly involving movement of passengers.

(2) Finance and business.

(3) Organizational effectiveness, operations management, and implementing best practices.

(4) Government contracts.

(5) Budget development and oversight.

(e) If a school corporation or school, in partnership with other school corporations, schools, or both other school corporations and schools, receives approval to participate in the:

(1) pilot program; and

(2) centralized school facilities pilot program under IC 20-20-52;

the school corporation or schools may elect to establish ~~not later than October 31, 2025;~~ one (1) local centralized school facilities and transportation board that has the powers and duties and is subject to the requirements of a local centralized school facilities board under IC 20-20-52 and local student transportation board under this chapter.

SECTION 10. IC 20-28-4-5, AS AMENDED BY P.L.192-2014, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. An individual who wishes to participate in the program must have one (1) of the following qualifications:

(1) For a program participant who seeks to obtain a license to teach in grades 5 through 12, one (1) of the following:



- 1 (A) A bachelor's degree or the equivalent with a grade point
 2 average of at least three (3.0) on a four (4.0) point scale from
 3 an accredited postsecondary educational institution in the
 4 subject area that the individual intends to teach.
 5 (B) A graduate degree from an accredited postsecondary
 6 educational institution in the subject area or a related field that
 7 the individual intends to teach.
 8 (C) ~~Both:~~
 9 ~~(i)~~ A bachelor's degree from an accredited postsecondary
 10 educational institution with a grade point average of at least
 11 two and five-tenths (2.5) on a four (4.0) point scale and
 12 **either:**
 13 **(i) eighteen (18) credit hours in the subject area the**
 14 **individual intends to teach; or**
 15 (ii) five (5) years professional experience in the subject or a
 16 related area that the individual intends to teach.
 17 (D) Both:
 18 (i) a bachelor's degree from an accredited postsecondary
 19 educational institution; and
 20 (ii) proof that the individual has passed the state approved
 21 content area examination in the subject area that the
 22 individual intends to teach.
 23 (2) For a program participant who seeks to obtain a license to
 24 teach in kindergarten through grade 6, one (1) of the following:
 25 (A) A bachelor's degree or the equivalent with a grade point
 26 average of at least three (3.0) on a four (4.0) point scale from
 27 an accredited institution of higher education.
 28 (B) Both:
 29 (i) a bachelor's degree from an accredited postsecondary
 30 educational institution with a grade point average of at least
 31 two and five-tenths (2.5) on a four (4.0) point scale; and
 32 (ii) five (5) years professional experience in an education
 33 related field, as determined by the department.
 34 (C) Both:
 35 (i) a bachelor's degree from an accredited postsecondary
 36 educational institution; and
 37 (ii) proof that the individual has passed the state approved
 38 content area examination in the subject area that the
 39 individual intends to teach.
 40 (3) For a program participant who seeks to obtain a license to
 41 teach in prekindergarten through grade 3, one (1) of the
 42 following:



(A) A bachelor's degree or the equivalent with a grade point average of at least three (3.0) on a four (4.0) point scale from an accredited institution of higher education.

(B) Both:

(i) a bachelor's degree from an accredited postsecondary educational institution with a grade point average of at least two and five-tenths (2.5) on a four (4.0) point scale; and

(ii) five (5) years professional experience in an education related field, as determined by the department.

(C) Both:

(i) a bachelor's degree from an accredited postsecondary educational institution; and

(ii) proof that the individual has passed the state approved content area examination in the subject area that the individual intends to teach.

SECTION 11. IC 20-28-5-21, AS AMENDED BY P.L.275-2019, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 21. To be eligible for a career specialist permit to teach in a secondary school, an applicant must meet one (1) of the following:

(1) The applicant:

(A) has a bachelor's degree with a cumulative grade point average of at least 3.0 on a 4.0 scale (or its equivalent if another grading scale is used) in the content area in which the applicant intends to teach;

(B) has passed the approved content area examination in the content area in which the applicant intends to teach;

(C) demonstrates proficiency in the area of pedagogy under procedures prescribed by the department; and

(D) has, within the immediately preceding five (5) years, at least four thousand (4,000) clock hours of documented occupational experience in the content area in which the applicant intends to teach.

(2) The applicant:

(A) meets the requirements under subdivision (1)(A) or (1)(B);

(B) demonstrates proficiency in the area of pedagogy under procedures prescribed by the department; and

(C) has, within the immediately preceding seven (7) years, at least five thousand (5,000) clock hours of documented occupational experience in the content area in which the applicant intends to teach.

(3) The applicant:



- (A) is at least twenty-one (21) years of age;
- (B) will teach aviation ground instruction; and
- (C) meets at least one (1) of the following conditions:
 - (i) The applicant has passed the Federal Aviation Administration advanced ground instructor and fundamentals of instruction tests and been issued a valid Federal Aviation Administration advanced ground instructor certificate.
 - (ii) The applicant possesses a valid Federal Aviation Administration certified flight instructor or certified flight instructor instrument certificate.

(4) The applicant:

- (A) is at least twenty-one (21) years of age;
- (B) will teach flight instruction; and
- (C) possesses a valid Federal Aviation Administration:
 - (i) certified flight instructor; or
 - (ii) certified flight instructor instrument;
 certificate with the appropriate Federal Aviation Administration aircraft ratings for the flight instruction being provided.

SECTION 12. IC 20-28-5-30 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 30. (a) As used in this section, "emergency permit" refers to an emergency permit described in 511 IAC 16-4-1 or its successor rule.**

(b) An emergency permit may be renewed up to two (2) times to an individual enrolled in an alternative teacher certification program under section 12.5 of this chapter if the program provides documentation verifying the individual's good standing in the program to the department.

SECTION 13. IC 20-28-9-1.5, AS AMENDED BY P.L.214-2025, SECTION 123, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1.5. (a) This subsection governs salary increases for a teacher employed by a school corporation. Compensation attributable to additional degrees or graduate credits earned before the effective date of a local compensation plan created under this chapter before July 1, 2015, shall continue for school years beginning after June 30, 2015. Compensation attributable to additional degrees for which a teacher has started course work before July 1, 2011, and completed course work before September 2, 2014, shall also continue for school years beginning after June 30, 2015. For school years beginning after June 30, 2022, a school corporation may provide**



1 a supplemental payment to a teacher in excess of the salary specified
 2 in the school corporation's compensation plan when doing so is in the
 3 best interest of students. A supplement provided under this subsection
 4 is not subject to collective bargaining and, under IC 20-29-6-3(d), a
 5 school corporation may exclude, for this purpose, a portion of the
 6 revenue available for bargaining from education fund revenues
 7 included in IC 20-29-2-6. Such a supplement is in addition to any
 8 increase permitted under subsection (b).

9 (b) Subject to subsection (e), increases or increments in a local
 10 salary range must be based upon a combination of the following
 11 factors:

12 (1) A combination of the following factors taken together may
 13 account for not more than fifty percent (50%) of the calculation
 14 used to determine a teacher's increase or increment:

15 (A) The number of years of a teacher's experience.

16 (B) The possession of either:

17 (i) additional content area degrees beyond the requirements
 18 for employment; or

19 (ii) additional content area degrees and credit hours beyond
 20 the requirements for employment, if required under an
 21 agreement bargained under IC 20-29.

22 (2) The results of an evaluation conducted under IC 20-28-11.5.

23 (3) The assignment of instructional leadership roles, including the
 24 responsibility for conducting evaluations under IC 20-28-11.5.

25 (4) The academic needs of students in the school corporation,
 26 including employment in a high need area such as those identified
 27 under IC 20-29-3-15(b)(27). This factor may not account for less
 28 than ten percent (10%) of the calculation used to determine a
 29 teacher's increase or increment.

30 (c) To provide greater flexibility and options, a school corporation
 31 may further differentiate the amount of salary increases or increments
 32 determined for teachers. A school corporation shall base a
 33 differentiated amount under this subsection on reasons the school
 34 corporation determines are appropriate, which may include the:

35 (1) subject or subjects taught by a given teacher;

36 (2) importance of retaining a given teacher at the school
 37 corporation;

38 (3) need to attract an individual with specific qualifications to fill
 39 a teaching vacancy; and

40 (4) offering of a new program or class.

41 (d) A school corporation may provide differentiated increases or
 42 increments under subsection (b), and in excess of the percentage



specified in subsection (b)(1), in order to:

- (1) reduce the gap between the school corporation's minimum teacher salary and the average of the school corporation's minimum and maximum teacher salaries; or
- (2) allow teachers currently employed by the school corporation to receive a salary adjusted in comparison to starting base salaries of new teachers.

(e) A school corporation shall differentiate the amount of salary ~~increases or increments~~ for teachers who possess a ~~required~~ literacy endorsement ~~under described in IC 20-28-5-19.7~~.

(f) The Indiana education employment relations board established in IC 20-29-3-1 shall publish a model compensation plan with a model salary range that a school corporation may adopt.

(g) Each school corporation shall submit its local compensation plan to the Indiana education employment relations board. A local compensation plan must specify the range for teacher salaries. The Indiana education employment relations board shall publish the local compensation plans on the Indiana education employment relations board's website.

(h) The Indiana education employment relations board shall review a compensation plan for compliance with this section as part of its review under IC 20-29-6-6.1. The Indiana education employment relations board has jurisdiction to determine compliance of a compensation plan submitted under this section.

(i) This chapter may not be construed to require or allow a school corporation to decrease the salary of any teacher below the salary the teacher was earning on or before July 1, 2015, if that decrease would be made solely to conform to the new compensation plan.

(j) After June 30, 2011, all rights, duties, or obligations established under IC 20-28-9-1 before its repeal are considered rights, duties, or obligations under this section.

(k) An employment agreement described in IC 20-28-6-7.3 between an adjunct teacher and a school corporation is not subject to this section.

SECTION 14. IC 20-28-9-27, AS AMENDED BY P.L.213-2025, SECTION 171, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 27. (a) As used in this section, "funding floor" means the amount a school corporation expended for full-time teacher salaries during a particular state fiscal year.

(b) Subject to subsections (d) and (e), if the amount of state tuition support distributed to a school corporation for a particular state fiscal year is greater than the amount of state tuition support distributed to the



1 school corporation for the preceding state fiscal year, the school
 2 corporation may not expend an amount for full-time teacher salaries
 3 during the particular state fiscal year that is less than the funding floor
 4 for the preceding state fiscal year.

5 (c) For purposes of this section, the amount a school corporation
 6 expends for full-time teacher salaries shall include the amount the
 7 school corporation expends for participating in:

- 8 (1) a special education cooperative; ~~or~~
- 9 (2) a career and technical education cooperative; **or**
- 10 (3) **an interlocal cooperative;**

11 that is directly attributable to the salaries of full-time teachers
 12 employed by the cooperative, as determined by the department.

13 (d) For purposes of this subsection, stipends paid using teacher
 14 appreciation grants under IC 20-43-16 are not considered. If a school
 15 corporation has awarded stipends to a majority of the school
 16 corporation's teachers in each of the two (2) preceding consecutive
 17 state fiscal years, an amount equal to the lesser of the total amount of
 18 stipends awarded in each of those state fiscal years shall be added to
 19 the school corporation's funding floor for the preceding state fiscal year
 20 described under subsection (b).

21 (e) Beginning after June 30, 2024, for each state fiscal year that a
 22 school corporation fails to meet the expenditure requirements regarding
 23 full-time teacher salaries under subsection (b), the department shall
 24 submit in both a written and an electronic format a notice to the school
 25 corporation's:

- 26 (1) superintendent;
- 27 (2) school business officer; and
- 28 (3) governing body;

29 that the school corporation failed to meet the requirements set forth in
 30 subsection (b) for the applicable state fiscal year.

31 (f) If a school corporation's governing body receives a notice from
 32 the department under subsection (e), the school corporation shall do the
 33 following:

- 34 (1) Publicly acknowledge receipt of the notice from the
 35 department at the governing body's next public meeting.
- 36 (2) Enter into the governing body's official minutes for the
 37 meeting described in subdivision (1) acknowledgment of the
 38 notice.
- 39 (3) Not later than thirty (30) days after the meeting described in
 40 subdivision (1), publish on the school corporation's website:
- 41 (A) the department's notice; and
- 42 (B) any relevant individual reports prepared by the



1 department.

2 (g) If the department determines a school corporation that received
3 one (1) or more notices from the department under subsection (e) has
4 met the expenditure requirements required under subsection (b) for a
5 subsequent state fiscal year, the school corporation may remove from
6 the school corporation's website any:

7 (1) notices the school corporation received under subsection (e);
8 and

9 (2) relevant individual reports prepared by the department under
10 subsection (f)(3).

11 SECTION 15. IC 20-30-7-1, AS AMENDED BY P.L.201-2025,
12 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
13 JULY 1, 2026]: Sec. 1. (a) Except as provided in subsection (c), the
14 ~~state board may~~ **department shall** prescribe a program of summer
15 school education for public schools. Subject to subsection (b), ~~the state~~
16 ~~board shall adopt rules under IC 4-22-2 to the department shall~~
17 provide for:

18 (1) summer school programs **guidelines**; and
19 (2) the state distribution formula for any money appropriated by
20 the general assembly for summer school education to allow for
21 funding for approved summer school programs on a per student
22 basis, which may include differentiated funding based on the
23 course the student is enrolled in and the length of time of the
24 summer school program.

25 (b) The ~~state board~~ **department** shall give priority reimbursement
26 for summer school courses that include curriculum aligned with the
27 science of reading designated by the department to support students in:

28 (1) grade 2 who are at risk of not being reading proficient; and
29 (2) grade 3 who are not reading proficient;
30 as indicated on the determinant evaluation of reading skills approved
31 by the state board under IC 20-32-8.5-2.

32 (c) A state accredited nonpublic school and an eligible school (as
33 defined in IC 20-51-1-4.7) shall be eligible for summer school funding
34 for courses that include curriculum aligned with the science of reading
35 designated by the department to support students in:

36 (1) grade 2 who are at risk of not being reading proficient; and
37 (2) grade 3 who are not reading proficient;
38 as indicated on the determinant evaluation of reading skills approved
39 by the state board under IC 20-32-8.5-2.

40 SECTION 16. IC 20-31-4.1-4, AS AMENDED BY P.L.11-2023,
41 SECTION 66, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
42 JULY 1, 2026]: Sec. 4. (a) Subject to subsection (b) and section 7 of



1 this chapter, a school or group of schools accredited under this chapter
 2 may submit an application to the state board, in a manner prescribed by
 3 the state board, requesting flexibility and to waive compliance with any
 4 provision in this title or 511 IAC in order to do one (1) or more of the
 5 following:

- 6 (1) Improve student performance and outcomes.
- 7 (2) Offer the applicant flexibility in the administration of
- 8 educational programs or improve the efficiency of school
- 9 operations.
- 10 (3) Promote innovative educational approaches to student
- 11 learning.
- 12 (4) Advance the mission or purpose of the school or group of
- 13 schools.

14 (b) The application submitted under subsection (a) must include the
 15 following:

- 16 (1) A list of the one (1) or more provisions in this title, 511 IAC,
- 17 or this title and 511 IAC that the school or group of schools is
- 18 requesting that the state board waive.
- 19 (2) The following information:
- 20 (A) The specific goal or outcome or goals or outcomes that the
- 21 school or group of schools intends to achieve by waiving the
- 22 provisions described in subdivision (1).
- 23 (B) How the specific goals or outcomes described in clause
- 24 (A) are likely to be achieved by waiving compliance with the
- 25 provisions described in subdivision (1).
- 26 (3) For an application submitted by:
- 27 (A) the governing body of a school corporation, a copy of the
- 28 resolution adopted by the governing body approving the
- 29 submission of the application;
- 30 (B) a charter school, written authorization by the charter
- 31 school organizer approving the submission of the application;
- 32 or
- 33 (C) a nonpublic school, written authorization by the person or
- 34 agency in active charge and management of the nonpublic
- 35 school approving the submission of the application.

36 **(c) To be eligible to waive IC 20-30-2-3 for the purposes of**
 37 **conducting a four (4) day school week at a school, a school must**
 38 **meet the following requirements:**

- 39 **(1) Provide transportation to a school that conducts a five (5)**
 40 **day school week that serves the same grade level for any**
 41 **student who would otherwise be assigned to a school that**
 42 **conducts a four (4) day school week.**



1 **(2) Be placed in the highest performance and improvement**
 2 **category or designation by the department under IC 20-31-8.**

3 **(3) Meet the minimum teacher salary threshold under**
 4 **IC 20-28-9-26.**

5 **(4) Provide enrichment and remediation opportunities on the**
 6 **day that a regular school day is not conducted at no cost to a**
 7 **parent of a student or student.**

8 SECTION 17. IC 20-32-5.1-13, AS AMENDED BY P.L.150-2024,
 9 SECTION 51, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 10 JULY 1, 2026]: Sec. 13. (a) The proficiency of students under a
 11 statewide summative assessment must be reported to the state board
 12 not later than

13 ~~(1) for the 2018-2019 school year, August 15, 2019; and~~

14 ~~(2) for each school year beginning after June 30, 2019;~~ July 1 of
 15 the year in which the statewide summative assessment is
 16 administered.

17 (b) Reports of student scores on the statewide summative
 18 assessment must be:

19 (1) returned to the school corporation, charter school, state
 20 accredited nonpublic school, or eligible school (as defined in
 21 IC 20-51-1-4.7) that administered the test; and

22 (2) accompanied by a guide for interpreting scores.

23 (c) Subject to approval by the state board, reports of student results
 24 on computer scored items under a statewide summative assessment
 25 may be returned to schools regardless of whether the hand scored items
 26 are returned.

27 (d) After reports of final student scores on the statewide summative
 28 assessment are returned to a school corporation, charter school, state
 29 accredited nonpublic school, or eligible school (as defined in
 30 IC 20-51-1-4.7), the school corporation or school shall promptly do the
 31 following:

32 (1) Give each student and the student's parent the student's
 33 statewide summative assessment test scores, including the
 34 summary described in section 14.5 of this chapter.

35 (2) Make available for inspection to each student and the student's
 36 parent the following:

37 (A) A copy of the student's scored responses.

38 (B) A copy of the anchor papers and scoring rubrics used to
 39 score the student's responses.

40 A student's parent or the student's principal may request a rescoring of
 41 a student's responses to a statewide summative assessment, including
 42 a student's essay. A student's final score on a rescored statewide



summative assessment must reflect the student's actual score on the rescored statewide summative assessment regardless of whether the student's score decreased or improved on the rescored assessment.

(e) The department shall develop criteria to provide a student's parent the opportunity to inspect questions in a manner that will not compromise the validity or integrity of a statewide summative assessment.

(f) A student's statewide summative assessment scores may not be disclosed to the public.

(g) The department may not release less than ten (10) items per subject matter per grade level. The state board and department shall:

(1) post:

(A) the questions; and

(B) with the permission of each student's parent, student answers that are exemplary responses to the released questions;

on the websites of the state board and department; and

(2) publicize the availability of the questions and answers to schools, educators, and the public.

A student answer posted under this subsection may not identify the student who provided the answer.

SECTION 18. IC 20-32-6.5-4 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4. (a) The department shall develop a teaching and learning framework for the implementation of mathematics academic standards created under IC 20-31-3-2.**

(b) The framework described in subsection (a) must include a kindergarten through grade 5 mathematics:

(1) proficiency implementation guide; and

(2) daily instruction recommendation that requires a minimum of:

(A) sixty (60) minutes for Tier 1 instruction; and

(B) twenty (20) minutes for mathematics interventions.

SECTION 19. IC 20-36-3-2.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2.5. As used in this chapter, "eligible school" means the following:**

(1) The Indiana School for the Deaf established by IC 20-22-2-1.

(2) The Indiana School for the Blind and Visually Impaired established by IC 20-21-2-1.

SECTION 20. IC 20-36-3-5, AS AMENDED BY P.L.2-2007,



SECTION 234, IS AMENDED TO READ AS FOLLOWS
[EFFECTIVE JULY 1, 2026]: Sec. 5. (a) Each school year:

(1) each school corporation **and eligible school** may provide the
College Board's science and math advanced placement courses;
and

(2) each school corporation **and eligible school** may provide
additional College Board advanced placement courses;
in secondary schools for students who qualify to take the advanced
placement courses.

(b) Each school corporation shall provide the College Board's
science and math advanced placement courses in secondary schools for
students who qualify to take the advanced placement courses.

(c) In addition to the College Board's math and science advanced
placement tests, the state board may approve advanced placement
courses offered by a state educational institution in collaboration with
a school corporation if the state educational institution and the
collaborating school corporation demonstrate to the state board that the
particular advanced placement course satisfies the objectives of this
chapter.

SECTION 21. IC 20-36-3-8, AS AMENDED BY P.L.20-2007,
SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 8. (a) Money appropriated to the department to
implement the program shall be distributed for purposes listed in the
following order:

(1) To pay the fees for each math or science advanced placement
examination that is taken by a student who is:

(A) enrolled in a public secondary school, **including schools
listed in section 2.5 of this chapter**; and

(B) a resident of Indiana.

Priority shall be given to paying the fees for each math or science
advanced placement examination that is taken by a student in
grade 11 or 12.

(2) To pay stipends for teachers assigned to teach a math or
science advanced course to attend the institutes under section 7 of
this chapter.

(3) To pay school corporations **and eligible schools** for
instructional materials needed for the math or science advanced
course.

(4) To pay for or rent equipment that a school corporation **or
eligible school** may need to develop a math or science advanced
course.

(5) To pay the fees for the costs incurred in implementing the



advanced placement program for the subjects other than math and science as authorized under section 5 of this chapter.

(b) The department shall establish guidelines concerning the distribution of funds under this chapter, including guidelines to ensure that money distributed under this chapter is distributed as evenly as possible throughout Indiana. In establishing these distribution guidelines, the department shall consider the following factors:

- (1) The number of students and teachers participating in the program.
- (2) Even geographic representation.
- (3) Financial need of students participating in the program.
- (4) Any other factor affecting the distribution of money under this chapter.

(c) The department may seek funding to carry out the purposes of this chapter through the following federal programs:

- (1) The Advanced Placement Incentive Program.
- (2) The Math-Science Partnership Program.

(d) The department may give priority in the distribution of funds to a school that serves a high concentration of low income students.

SECTION 22. IC 20-36-3-9, AS AMENDED BY P.L.20-2007, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) The department shall develop and provide each public middle school, junior high school, and secondary school, **including schools listed in section 2.5 of this chapter**, with curriculum guidelines designed to satisfy the requirements of this chapter.

(b) The guidelines developed under subsection (a) shall include a plan for increasing the:

- (1) availability of advanced placement program in schools with a high concentration of low income students; and
- (2) participation of low income students in advanced placement programs;

through information dissemination through print, electronic, and broadcast media that informs parents and students of the importance of advanced placement and preadvanced placement courses to a student's ability to gain access to and to succeed in postsecondary education.

SECTION 23. IC 20-38-4 IS ADDED TO THE INDIANA CODE AS A **NEW CHAPTER** TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 4. Interstate Teacher Mobility Compact

Sec. 1. The following interstate teacher mobility compact agreement is enacted into law and entered into by this state with all



1 other states legally joining the interstate agreement in substantially
2 the following form.

3 **Sec. 2. Article I, purpose.** The purpose of this compact is to
4 facilitate the mobility of teachers across the member states, with
5 the goal of supporting teachers through a new pathway to
6 licensure. Through this compact, the member states seek to
7 establish a collective regulatory framework that expedites and
8 enhances the ability of teachers to move across state lines. This
9 compact is intended to achieve the following objectives and should
10 be interpreted accordingly. The member states hereby ratify the
11 same intentions by subscribing to:

- 12 (1) Create a streamlined pathway to licensure mobility for
13 teachers.
- 14 (2) Support the relocation of eligible military spouses.
- 15 (3) Facilitate and enhance the exchange of licensure,
16 investigative, and disciplinary information between member
17 states.
- 18 (4) Enhance the power of state and district level education
19 officials to hire qualified, competent teachers by removing
20 barriers to the employment of out-of-state teachers.
- 21 (5) Support the retention of teachers in the profession by
22 removing barriers to relicensure in a new state.
- 23 (6) Maintain state sovereignty in the regulation of the
24 teaching profession.

25 **Sec. 3. Article II, definitions.** As used in this compact, and except
26 as otherwise provided, the following definitions shall govern the
27 terms herein:

- 28 (1) "Active military member" means any person with
29 full-time duty status in the armed forces of the United States,
30 including members of the National Guard and Reserve.
- 31 (2) "Adverse action" means any limitation or restriction
32 imposed by a member state's licensing authority, such as
33 revocation, suspension, reprimand, probation, or limitation on
34 the licensee's ability to work as a teacher.
- 35 (3) "Bylaws" means those bylaws established by the
36 commission.
- 37 (4) "Career and technical education license" means a current,
38 valid authorization issued by a member state's licensing
39 authority allowing an individual to serve as a teacher in P-12
40 public educational settings in a specific career and technical
41 education area.
- 42 (5) "Charter member states" means a member state that has



enacted legislation to adopt this compact where such legislation predates the initial meeting of the commission after the effective date of the compact.

(6) "Commission" means the interstate administrative body the membership of which consists of delegates of all states that have enacted this compact, and which is known as the interstate teacher mobility compact commission.

(7) "Commissioner" means the delegate of a member state.

(8) "Eligible license" means a license to engage in the teaching profession which requires at least a bachelor's degree and the completion of a state approved program for teacher licensure.

(9) "Eligible military spouse" means the spouse of any individual in full-time duty status in the active armed forces of the United States, including members of the National Guard and Reserve, moving as a result of a military mission or military career progression requirements or on the individual's terminal move as a result of separation or retirement (to include surviving spouses of deceased military members).

(10) "Executive committee" means a group of commissioners elected or appointed to act on behalf of, and within the powers granted to them by, the commission as provided for herein.

(11) "Licensing authority" means an official, agency, board, or other entity of a state that is responsible for the licensing and regulation of teachers authorized to teach in P-12 public educational settings.

(12) "Member state" means any state that has adopted this compact, including all agencies and officials of such a state.

(13) "Receiving state" means any state where a teacher has applied for licensure under this compact.

(14) "Rule" means any regulation promulgated by the commission under this compact, which shall have the force of law in each member state.

(15) "State" means a state, territory, or possession of the United States, and the District of Columbia.

(16) "State practice laws" means a member state's laws, rules, and regulations that govern the teaching profession, define the scope of such profession, and create the methods and grounds for imposing discipline.

(17) "State specific requirements" means a requirement for licensure covered in coursework or examination that includes content of unique interest to the state.



(18) "Teacher" means an individual who currently holds an authorization from a member state that forms the basis for employment in the P-12 public schools of the state to provide instruction in a specific subject area, grade level, or student population.

(19) "Unencumbered license" means a current, valid authorization issued by a member state's licensing authority allowing an individual to serve as a teacher in P-12 public educational settings. An unencumbered license is not a restricted, probationary, provisional, substitute, or temporary credential.

Sec. 4. Article III, licensure under the compact.

(1) Licensure under this compact pertains only to the initial grant of a license by the receiving state. Nothing herein applies to any subsequent or ongoing compliance requirements that a receiving state might require for teachers.

(2) Each member state shall, in accordance with the rules of the commission, define, compile, and update as necessary, a list of eligible licenses and career and technical education licenses that the member state is willing to consider for equivalency under this compact and provide the list to the commission. The list shall include those licenses that a receiving state is willing to grant to teachers from other member states, pending a determination of equivalency by the receiving state's licensing authority.

(3) Upon the receipt of an application for licensure by a teacher holding an unencumbered eligible license, the receiving state shall determine which of the receiving state's eligible licenses the teacher is qualified to hold and shall grant such a license or licenses to the applicant. Such a determination shall be made in the sole discretion of the receiving state's licensing authority and may include a determination that the applicant is not eligible for any of the receiving state's eligible licenses. For all teachers who hold an unencumbered license, the receiving state shall grant one (1) or more unencumbered license(s) that, in the receiving state's sole discretion, are equivalent to the license(s) held by the teacher in any other member state.

(4) For active military members and eligible military spouses who hold a license that is not unencumbered, the receiving state shall grant an equivalent license or licenses that, in the



receiving state's sole discretion, is equivalent to the license or licenses held by the teacher in any other member state, except where the receiving state does not have an equivalent license. (5) For a teacher holding an unencumbered career and technical education license, the receiving state shall grant an unencumbered license equivalent to the career and technical education license held by the applying teacher and issued by another member state, as determined by the receiving state in its sole discretion, except where a career and technical education teacher does not hold a bachelor's degree and the receiving state requires a bachelor's degree for licenses to teach career and technical education. A receiving state may require career and technical education teachers to meet state industry recognized requirements, if required by law in the receiving state.

Sec. 5. Article IV, licensure not under the compact.

(1) Except as provided in section 4 of this chapter, nothing in this compact shall be construed to limit or inhibit the power of a member state to regulate licensure or endorsements overseen by the member state's licensing authority.

(2) When a teacher is required to renew a license received pursuant to this compact, the state granting such a license may require the teacher to complete state specific requirements as a condition of licensure renewal or advancement in that state.

(3) For the purposes of determining compensation, a receiving state may require additional information from teachers receiving a license under the provisions of this compact.

(4) Nothing in this compact shall be construed to limit the power of a member state to control and maintain ownership of its information pertaining to teachers, or limit the application of a member state's laws or regulations governing the ownership, use, or dissemination of information pertaining to teachers.

(5) Nothing in this compact shall be construed to invalidate or alter any existing agreement or other cooperative arrangement to which a member state may already be a party, or limit the ability of a member state to participate in any future agreement or other cooperative arrangement to:

(A) award teaching licenses or other benefits based on additional professional credentials, including national board certification;



(B) participate in the exchange of names of teachers whose license has been subject to an adverse action by a member state; or

(C) participate in any agreement or cooperative arrangement with a nonmember state.

Sec. 6. Article V, teacher qualifications and requirements for licensure under the compact.

(1) Except as provided for active military members or eligible military spouses in section 4 of this chapter, a teacher may only be eligible to receive a license under this compact where that teacher holds an unencumbered license in a member state.

(2) A teacher eligible to receive a license under this compact shall, unless otherwise provided for herein:

(A) upon application to receive a license under this compact, undergo a criminal background check in the receiving state in accordance with the laws and regulations of the receiving state; and

(B) provide the receiving state with information in addition to the information required for licensure for the purposes of determining compensation, if applicable.

Sec. 7. Article VI, discipline and adverse actions.

(1) Nothing in this compact shall be deemed or construed to limit the authority of a member state to investigate or impose disciplinary measures on teachers according to the state practice laws thereof.

(2) Member states shall be authorized to receive, and shall provide, files and information regarding the investigation and discipline, if any, of teachers in other member states upon request. Any member state receiving such information or files shall protect and maintain the security and confidentiality thereof, in at least the same manner that the member state maintains its own investigatory or disciplinary files and information. Prior to disclosing any disciplinary or investigatory information received from another member state, the disclosing state shall communicate its intention and purpose for such disclosure to the member state which originally provided that information.

Sec. 8. (a) Article VII, establishment of the interstate teacher mobility compact commission.

(1) The interstate compact member states hereby create and establish a joint public agency known as the interstate teacher



mobility compact commission:

(A) The commission is a joint interstate governmental agency comprised of states that have enacted the interstate teacher mobility compact.

(B) Nothing in this interstate compact shall be construed to be a waiver of sovereign immunity.

(b) Membership, voting, and meetings.

(1) Each member state shall have and be limited to one (1) delegate to the commission, who shall be given the title of commissioner.

(2) The commissioner shall be the primary administrative officer of the state licensing authority or the officer's designee.

(3) Any commissioner may be removed or suspended from office as provided by the law of the state from which the commissioner is appointed.

(4) The member state shall fill any vacancy occurring in the commission within ninety (90) days.

(5) Each commissioner shall be entitled to one (1) vote about the promulgation of rules and creation of bylaws and shall otherwise have an opportunity to participate in the business and affairs of the commission. A commissioner shall vote in person or by such other means as provided in the bylaws. The bylaws may provide for commissioners' participation in meetings by telephone or other means of communication.

(6) The commission shall meet at least once during each calendar year. Additional meetings shall be held as set forth in the bylaws.

(7) The commission shall establish by rule a term of office for commissioners.

(c) The commission shall have the following powers and duties:

(1) Establish the code of ethics for the commission.

(2) Establish the fiscal year of the commission.

(3) Establish bylaws for the commission.

(4) Maintain its financial records in accordance with the bylaws of the commission.

(5) Meet and take such actions as are consistent with the provisions of this interstate compact, the bylaws, and the rules of the commission.

(6) Promulgate uniform rules to implement and administer this interstate compact. The rules shall have the force and effect of law and shall be binding in all member states. In the event the commission exercises its rulemaking authority in a



manner that is beyond the scope of the purposes of the compact, or the powers granted hereunder, then such an action by the commission shall be invalid and have no force and effect of law.

(7) Bring and prosecute legal proceedings or actions in the name of the commission, provided that the standing of any member state licensing authority to sue or be sued under applicable law shall not be affected.

(8) Purchase and maintain insurance and bonds.

(9) Borrow, accept, or contract for services of personnel, including employees of a member state, or an associated nongovernmental organization that is open to membership by all states.

(10) Hire employees, elect or appoint officers, fix compensation, define duties, grant such individuals appropriate authority to carry out the purposes of the compact, and establish the commission's personnel policies and programs relating to conflicts of interest, qualifications of personnel, and other related personnel matters.

(11) Lease, purchase, accept appropriate gifts or donations of, or otherwise own, hold, improve, or use, any property, real, personal, or mixed, provided that at all times the commission shall avoid any appearance of impropriety.

(12) Sell, convey, mortgage, pledge, lease, exchange, abandon, or otherwise dispose of any property real, personal, or mixed.

(13) Establish a budget and make expenditures.

(14) Borrow money.

(15) Appoint committees, including standing committees composed of members and such other interested persons as may be designated in this interstate compact, rules, or bylaws.

(16) Provide and receive information from, and cooperate with, law enforcement agencies.

(17) Establish and elect an executive committee.

(18) Establish and develop a charter for an executive information governance committee to advise on facilitating exchange of information, use of information, data privacy, and technical support needs, and provide reports as needed.

(19) Perform such other functions as may be necessary or appropriate to achieve the purposes of this interstate compact consistent with the state regulation of teacher licensure.

(20) Determine whether a state's adopted language is materially different from the model compact language such



1 that the state would not qualify for participation in the
2 compact.

3 (d) The executive committee of the interstate teacher mobility
4 compact commission.

5 (1) The executive committee shall have the power to act on
6 behalf of the commission according to the terms of this
7 interstate compact.

8 (2) The executive committee shall be composed of the
9 following eight (8) voting members:

10 (A) The commission chair, vice chair, and treasurer.

11 (B) Five (5) members who are elected by the commission
12 from the current membership as follows:

13 (i) Four (4) voting members representing geographic
14 regions in accordance with commission rules.

15 (ii) One (1) at-large voting member in accordance with
16 commission rules.

17 (3) The commission may add or remove members of the
18 executive committee as provided in commission rules.

19 (4) The executive committee shall meet at least once annually.

20 (5) The executive committee shall have the following duties
21 and responsibilities:

22 (A) Recommend to the entire commission changes to the
23 rules or bylaws, changes to the compact legislation, fees
24 paid by interstate compact member states such as annual
25 dues, and any compact fee charged by the member states
26 on behalf of the commission.

27 (B) Ensure commission administration services are
28 appropriately provided, contractual or otherwise.

29 (C) Prepare and recommend the budget.

30 (D) Maintain financial records on behalf of the
31 commission.

32 (E) Monitor compliance of member states and provide
33 reports to the commission.

34 (F) Perform other duties as provided in rules or bylaws.

35 (6) Meetings of the commission.

36 (A) All meetings shall be open to the public, and public
37 notice of meetings shall be given in accordance with
38 commission bylaws.

39 (B) The commission or the executive committee or other
40 committees of the commission may convene in a closed,
41 nonpublic meeting if the commission or executive
42 committee or other committees of the commission must



1 discuss:

2 (i) noncompliance of a member state with its obligations
3 under the compact;

4 (ii) the employment, compensation, discipline or other
5 matters, practices or procedures related to specific
6 employees, or other matters related to the commission's
7 internal personnel practices and procedures;

8 (iii) current, threatened, or reasonably anticipated
9 litigation;

10 (iv) negotiation of contracts for the purchase, lease, or
11 sale of goods, services, or real estate;

12 (v) accusing any person of a crime or formally censuring
13 any person;

14 (vi) disclosure of trade secrets or commercial or financial
15 information that is privileged or confidential;

16 (vii) disclosure of information of a personal nature
17 where disclosure would constitute a clearly unwarranted
18 invasion of personal privacy;

19 (viii) disclosure of investigative records compiled for law
20 enforcement purposes;

21 (ix) disclosure of information related to any investigative
22 reports prepared by or on behalf of or for use of the
23 commission or other committee charged with
24 responsibility of investigation or determination of
25 compliance issues pursuant to the compact;

26 (x) matters specifically exempted from disclosure by
27 federal or member state statute; or

28 (xi) others matters as set forth by commission bylaws
29 and rules.

30 (C) If a meeting, or portion of a meeting, is closed pursuant
31 to this provision, the commission's legal counsel or
32 designee shall certify that the meeting may be closed and
33 shall reference each relevant exempting provision.

34 (D) The commission shall keep minutes of commission
35 meetings and shall provide a full and accurate summary of
36 actions taken, and the reasons therefore, including a
37 description of the views expressed. All documents
38 considered in connection with an action shall be identified
39 in such minutes. All minutes and documents of a closed
40 meeting shall remain under seal, subject to release by a
41 majority vote of the commission or order of a court of
42 competent jurisdiction.



1 **(7) Financing of the commission.**

2 **(A) The commission shall pay, or provide for the payment**
 3 **of, the reasonable expenses of its establishment,**
 4 **organization, and ongoing activities.**

5 **(B) The commission may accept all appropriate donations**
 6 **and grants of money, equipment, supplies, materials, and**
 7 **services, and receive, utilize, and dispose of the same,**
 8 **provided that at all times the commission shall avoid any**
 9 **appearance of impropriety or conflict of interest.**

10 **(C) The commission may levy on and collect an annual**
 11 **assessment from each member state or impose fees on**
 12 **other parties to cover the cost of the operations and**
 13 **activities of the commission, in accordance with the**
 14 **commission rules.**

15 **(D) The commission shall not incur obligations of any kind**
 16 **prior to securing the funds adequate to meet the same, nor**
 17 **shall the commission pledge the credit of any of the**
 18 **member states, except by and with the authority of the**
 19 **member state.**

20 **(E) The commission shall keep accurate accounts of all**
 21 **receipts and disbursements. The receipts and**
 22 **disbursements of the commission shall be subject to**
 23 **accounting procedures established under commission**
 24 **bylaws. All receipts and disbursements of funds of the**
 25 **commission shall be reviewed annually in accordance with**
 26 **commission bylaws, and a report of the review shall be**
 27 **included in and become part of the annual report of the**
 28 **commission.**

29 **(8) Qualified immunity, defense, and indemnification.**

30 **(A) The members, officers, executive director, employees,**
 31 **and representatives of the commission shall be immune**
 32 **from suit and liability, either personally or in their official**
 33 **capacity, for any claim for damage to or loss of property or**
 34 **personal injury or other civil liability caused by or arising**
 35 **out of any actual or alleged act, error, or omission that**
 36 **occurred, or that the person against whom the claim is**
 37 **made had a reasonable basis for believing occurred within**
 38 **the scope of commission employment, duties, or**
 39 **responsibilities; provided that nothing in this clause shall**
 40 **be construed to protect any such person from suit or**
 41 **liability for any damage, loss, injury, or liability caused by**
 42 **the intentional or willful or wanton misconduct of that**



1 person.

2 (B) The commission shall defend any member, officer,
3 executive director, employee, or representative of the
4 commission in any civil action seeking to impose liability
5 arising out of any actual or alleged act, error, or omission
6 that occurred within the scope of commission employment,
7 duties, or responsibilities, or that the person against whom
8 the claim is made had a reasonable basis for believing
9 occurred within the scope of commission employment,
10 duties, or responsibilities; provided that nothing herein
11 shall be construed to prohibit that person from retaining
12 his or her own counsel; and provided further, that the
13 actual or alleged act, error, or omission did not result from
14 that person's intentional or willful or wanton misconduct.

15 (C) The commission shall indemnify and hold harmless any
16 member, officer, executive director, employee, or
17 representative of the commission for the amount of any
18 settlement or judgment obtained against that person
19 arising out of any actual or alleged act, error, or omission
20 that occurred within the scope of commission employment,
21 duties, or responsibilities, or that such person had a
22 reasonable basis for believing occurred within the scope of
23 commission employment, duties, or responsibilities,
24 provided that the actual or alleged act, error, or omission
25 did not result from the intentional or willful or wanton
26 misconduct of that person.

27 **Sec. 9. Article VIII, rulemaking.**

28 (1) The commission shall exercise its rulemaking powers
29 pursuant to the criteria set forth in this interstate compact
30 and the rules adopted thereunder. Rules and amendments
31 shall become binding as of the date specified in each rule or
32 amendment.

33 (2) The commission shall promulgate reasonable rules to
34 achieve the intent and purpose of this interstate compact. In
35 the event the commission exercises its rulemaking authority
36 in a manner that is beyond purpose and intent of this
37 interstate compact, or the powers granted hereunder, then
38 such an action by the commission shall be invalid and have no
39 force and effect of law in the member states.

40 (3) If a majority of the legislatures of the member states
41 rejects a rule, by enactment of a statute or resolution in the
42 same manner used to adopt the compact within four (4) years



1 of the date of adoption of the rule, then such rule shall have no
2 further force and effect in any member state.

3 (4) Rules or amendments to the rules shall be adopted or
4 ratified at a regular or special meeting of the commission in
5 accordance with commission rules and bylaws.

6 (5) Upon determination that an emergency exists, the
7 commission may consider and adopt an emergency rule with
8 forty-eight (48) hours notice, with opportunity to comment,
9 provided that the usual rulemaking procedures shall be
10 retroactively applied to the rule as soon as reasonably
11 possible, in no event later than ninety (90) days after the
12 effective date of the rule. For the purposes of this provision,
13 an emergency rule is one that must be adopted immediately in
14 order to do the following:

15 (A) Meet an imminent threat to public health, safety, or
16 welfare.

17 (B) Prevent a loss of commission or member state funds.

18 (C) Meet a deadline for the promulgation of an
19 administrative rule that is established by federal law or
20 rule.

21 (D) Protect public health and safety.

22 **Sec. 10. Article IX, facilitating information exchange.**

23 (1) The commission shall provide for facilitating the exchange
24 of information to administer and implement the provisions of
25 this compact in accordance with the rules of the commission,
26 consistent with generally accepted data protection principles.

27 (2) Nothing in this compact shall be deemed or construed to
28 alter, limit, or inhibit the power of a member state to control
29 and maintain ownership of its licensee information or alter,
30 limit, or inhibit the laws or regulations governing licensee
31 information in the member state.

32 **Sec. 11. Article X, oversight, dispute resolution, and**
33 **enforcement.**

34 **(1) Oversight.**

35 (A) The executive and judicial branches of state
36 government in each member state shall enforce this
37 compact and take all actions necessary and appropriate to
38 effectuate the compact's purposes and intent. The
39 provisions of this compact shall have standing as statutory
40 law.

41 (B) Venue is proper and judicial proceedings by or against
42 the commission shall be brought solely and exclusively in



a court of competent jurisdiction where the principal office of the commission is located. The commission may waive venue and jurisdictional defenses to the extent it adopts or consents to participate in alternative dispute resolution proceedings. Nothing herein shall affect or limit the selection or propriety of venue in any action against a licensee for professional malpractice, misconduct, or any such similar matter.

(C) All courts and all administrative agencies shall take judicial notice of the compact, the rules of the commission, and any information provided to a member state pursuant thereto in any judicial or quasi-judicial proceeding in a member state pertaining to the subject matter of this compact, or which may affect the powers, responsibilities, or actions of the commission.

(D) The commission shall be entitled to receive service of process in any proceeding regarding the enforcement or interpretation of the compact and shall have standing to intervene in such a proceeding for all purposes. Failure to provide the commission service of process shall render a judgment or order void as to the commission, this compact, or promulgated rules.

(2) Default, technical assistance, and termination.

(A) If the commission determines that a member state has defaulted in the performance of its obligations or responsibilities under this compact or the promulgated rules, the commission shall:

(i) provide written notice to the defaulting state and other member states of the nature of the default, the proposed means of curing the default or any other action to be taken by the commission; and

(ii) provide remedial training and specific technical assistance regarding the default.

(3) If a state in default fails to cure the default, the defaulting state may be terminated from the compact upon an affirmative vote of a majority of the commissioners of the member states, and all rights, privileges, and benefits conferred on that state by this compact may be terminated on the effective date of termination. A cure of the default does not relieve the offending state of obligations or liabilities incurred during the period of default.

(4) Termination of membership in the compact shall be



1 imposed only after all other means of securing compliance
 2 have been exhausted. Notice of intent to suspend or terminate
 3 shall be given by the commission to the governor, the majority
 4 and minority leaders of the defaulting state's legislature, the
 5 state licensing authority, and each of the member states.

6 (5) A state that has been terminated is responsible for all
 7 assessments, obligations, and liabilities incurred through the
 8 effective date of termination, including obligations that extend
 9 beyond the effective date of termination.

10 (6) The commission shall not bear any costs related to a state
 11 that is found to be in default or that has been terminated from
 12 the compact, unless agreed upon in writing between the
 13 commission and the defaulting state.

14 (7) The defaulting state may appeal the action of the
 15 commission by petitioning the United States District Court for
 16 the District of Columbia or the federal district where the
 17 commission has its principal offices. The prevailing party
 18 shall be awarded all costs of such litigation, including
 19 reasonable attorney's fees.

20 (8) Dispute resolution.

21 (A) Upon request by a member state, the commission shall
 22 attempt to resolve disputes related to the compact that
 23 arise among member states and between member and
 24 nonmember states.

25 (B) The commission shall promulgate a rule providing for
 26 both binding and nonbinding alternative dispute resolution
 27 for disputes as appropriate.

28 (9) Enforcement.

29 (A) The commission, in the reasonable exercise of its
 30 discretion, shall enforce the provisions and rules of this
 31 compact.

32 (B) By majority vote, the commission may initiate legal
 33 action in the United States District Court for the District of
 34 Columbia or the federal district where the commission has
 35 its principal offices against a member state in default to
 36 enforce compliance with the provisions of the compact and
 37 its promulgated rules and bylaws. The relief sought may
 38 include both injunctive relief and damages. In the event
 39 judicial enforcement is necessary, the prevailing party
 40 shall be awarded all costs of such litigation, including
 41 reasonable attorney's fees. The remedies herein shall not
 42 be the exclusive remedies of the commission. The



commission may pursue any other remedies available under federal or state law.

Sec. 12. Article XI, effectuation, withdrawal, and amendment.

(1) The compact shall come into effect on the date on which the compact statute is enacted into law in the tenth member state.

(A) On or after the effective date of the compact, the commission shall convene and review the enactment of each of the charter member states to determine if the statute enacted by each such charter member state is materially different from the model compact statute.

(B) A charter member state whose enactment is found to be materially different from the model compact statute shall be entitled to the default process set forth in section 11 of this chapter.

(C) Member states enacting the compact subsequent to the charter member states shall be subject to the process set forth in section 8(c)(20) of this chapter to determine if their enactments are materially different from the model compact statute and whether they qualify for participation in the compact.

(2) If any member state is later found to be in default, or is terminated or withdraws from the compact, the commission shall remain in existence and the compact shall remain in effect even if the number of member states should be less than ten (10).

(3) Any state that joins the compact after the commission's initial adoption of the rules and bylaws shall be subject to the rules and bylaws as they exist on the date on which the compact becomes law in that state. Any rule that has been previously adopted by the commission shall have the full force and effect of law on the day the compact becomes law in that state, as the rules and bylaws may be amended as provided in this compact.

(4) Any member state may withdraw from this compact by enacting a statute repealing the same.

(A) A member state's withdrawal shall not take effect until six (6) months after enactment of the repealing statute.

(B) Withdrawal shall not affect the continuing requirement of the withdrawing state's licensing authority to comply with the investigative and adverse action reporting requirements of this act prior to the effective date of



1 withdrawal.

2 (5) This compact may be amended by the member states. No
3 amendment to this compact shall become effective and
4 binding upon any member state until it is enacted into the
5 laws of all member states.

6 **Sec. 13. Article XII, construction and severability.**

7 (1) This compact shall be liberally construed to effectuate the
8 purposes thereof. The provisions of this compact shall be
9 severable and if any phrase, clause, sentence, or provision of
10 this compact is declared to be contrary to the constitution of
11 any member state or a state seeking membership in the
12 compact, or of the United States or the applicability thereof to
13 any other government, agency, person, or circumstance is
14 held invalid, the validity of the remainder of this compact and
15 the applicability thereof to any government, agency, person,
16 or circumstance shall not be affected thereby. If this compact
17 shall be held contrary to the constitution of any member state,
18 the compact shall remain in full force and effect as to the
19 remaining member states and in full force and effect as to the
20 member state affected as to all severable matters.

21 **Sec. 14. Article XIII, consistent effect and conflict with other**
22 **state laws.**

23 (1) Nothing herein shall prevent or inhibit the enforcement of
24 any other law of a member state that is not inconsistent with
25 the compact.

26 (2) Any laws, statutes, regulations, or other legal
27 requirements in a member state in conflict with the compact
28 are superseded to the extent of the conflict.

29 (3) All permissible agreements between the commission and
30 the member states are binding in accordance with their terms.

31 **Sec. 15. (a) The secretary of education, or a person authorized**
32 **to act on behalf of the secretary of education, is the designated**
33 **education official selected by this state to negotiate and enter into,**
34 **on behalf of this state, contracts under the interstate agreement set**
35 **forth in section 1 of this chapter.**

36 (b) The designated education official, acting jointly with similar
37 officers of other party states, may adopt rules to carry out more
38 effectively the terms of the interstate agreement.

39 (c) The designated education official is authorized, empowered,
40 and directed to cooperate with all departments, agencies, and
41 officers of state government and its subdivisions in facilitating the
42 proper administration of the following:



(1) **The interstate agreement.**

(2) **A supplementary agreement entered into by this state under the interstate agreement.**

SECTION 24. IC 20-43-8-7.5, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.5. (a) The ~~department of workforce development~~ **commission for higher education** shall designate each career and technical education program as:

- (1) an apprenticeship program;
- (2) a cooperative education program;
- (3) a work based learning program;
- (4) a high value program;
- (5) a moderate value program;
- (6) a less than moderate value program;
- (7) an introductory program; or
- (8) a foundational career and technical education course.

The designation of career and technical education programs by the ~~department of workforce development~~ **commission for higher education** under this section must be reviewed and approved by the state board as provided in this section.

(b) Not later than ~~December 1, 2019, and each~~ December 1 thereafter, ~~of each year,~~ the ~~department of workforce development~~ **commission for higher education** shall designate each career and technical education program as:

- (1) an apprenticeship program;
- (2) a work based learning program;
- (3) a high value level 1 program;
- (4) a high value level 2 program;
- (5) a moderate value level 1 program;
- (6) a moderate value level 2 program;
- (7) a less than moderate value level 1 program;
- (8) a less than moderate value level 2 program;
- (9) a planning for college and career course; or
- (10) an introductory program.

The designation of career and technical education programs by the ~~department of workforce development~~ **commission for higher education** under this section must be reviewed and approved by the state board as provided in this section.

(c) If a new career and technical education program is created by rule, the ~~department of workforce development~~ **commission for higher education** shall determine the category in which the program is



designated under subsection (a) or (b). A career and technical education program must be approved by the ~~department of workforce development~~ **commission for higher education** in order for a school corporation to be eligible to receive a grant amount for the career and technical education program under section 15 of this chapter.

(d) Not later than December 1 of each year, the ~~department of workforce development~~ **commission for higher education** shall provide a report to the state board that includes the following information:

(1) A list of the career and technical education courses for the next school year that are designated by the ~~department of workforce development~~ **commission for higher education** under this section.

(2) The labor market demand used to designate each career and technical education program under this section.

(3) The average wage level used to designate each career and technical education program under this section.

(4) If applicable, the labor market demand and average wage level data for specific regions, counties, and municipalities.

(5) Any other information pertinent to the methodology used by the ~~department of workforce development~~ **commission for higher education** to designate each career and technical education program under this section.

(e) Not later than January 1 of each year, the state board shall review and approve the report provided by the ~~department of workforce development~~ **commission for higher education** under subsection (d) at a public meeting to ensure that the list of courses is in compliance with the long range state plan developed under IC 20-20-38-4. Not later than January 1 of each year, the state board shall send its determination to the ~~department of workforce development~~ **commission for higher education**. Upon receipt of the state board's determination, the ~~department of workforce development~~ **commission for higher education** shall provide the approved report to the department.

(f) The ~~department of workforce development~~ **commission for higher education** shall publish the approved report under subsection (e) on the ~~department of workforce development's Internet web site~~ **commission for higher education's website**, including the following:

(1) The list of career and technical education programs that are designated by the ~~department of workforce development~~ **commission for higher education** under this section.

(2) The labor market demand used to designate each career and technical education program under this section.



(3) The average wage level used to designate each career and technical education program under this section.

(4) If applicable, the labor market demand and average wage level data for specific regions, counties, and municipalities.

(5) Any other information pertinent to the methodology used by the ~~department of workforce development~~ **commission for higher education** to designate each career and technical education program under this section.

In addition, the department shall notify all school corporations of the state board's approval of the report under subsection (e) and provide a link within the notice to the approved report published on the ~~department of workforce development's Internet web site~~ **commission for higher education's website** under this subsection.

SECTION 25. IC 20-43-8-10, AS AMENDED BY P.L.230-2017, SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. If a school corporation determines that the categories of career and technical education programs issued by the ~~department of workforce development~~ **commission for higher education** and approved by the state board under section 7.5 of this chapter are not representative of the employment demand in the region surrounding the school corporation, the school corporation may petition the ~~department of workforce development~~ **commission for higher education** to recategorize for the school corporation the career and technical education programs offered by the school corporation according to the employment demand in the region surrounding the school corporation. The petition must include information supporting the school corporation's determination that the categories of career and technical education programs by the ~~department of workforce development~~ **commission for higher education** under section 7.5 of this chapter are not representative of the employment demand in the region surrounding the school corporation. The state board shall review and approve any course recategorization by the ~~department of workforce development~~ **commission for higher education** under this section.

SECTION 26. IC 20-43-8-15, AS AMENDED BY P.L.213-2025, SECTION 189, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 15. (a) This subsection applies to the state fiscal year beginning July 1, 2025, and ending June 30, 2026. A school corporation's career and technical education enrollment grant for a state fiscal year is the sum of the amounts determined under the following STEPS:

STEP ONE: Determine for each career and technical education



program provided by the school corporation:

(A) the number of credit hours of the program (one (1) credit, two (2) credits, or three (3) credits); multiplied by

(B) the number of pupils enrolled in the program; multiplied by

(C) the following applicable amount:

(i) Seven hundred ten dollars (\$710) for a career and technical education program designated by the department of workforce development as a high value level 1 program under section 7.5 of this chapter.

(ii) One thousand sixty-five dollars (\$1,065) for a career and technical education program designated by the department of workforce development as a high value level 2 program under section 7.5 of this chapter.

(iii) Three hundred ninety-eight dollars (\$398) for a career and technical education program designated by the department of workforce development as a moderate value level 1 program under section 7.5 of this chapter.

(iv) Five hundred ninety-seven dollars (\$597) for a career and technical education program designated by the department of workforce development as a moderate value level 2 program under section 7.5 of this chapter.

(v) One hundred ninety-nine dollars (\$199) for a career and technical education program designated by the department of workforce development as a less than moderate value level 1 program under section 7.5 of this chapter.

(vi) Two hundred ninety-eight dollars (\$298) for a career and technical education program designated by the department of workforce development as a less than moderate value level 2 program under section 7.5 of this chapter.

STEP TWO: Determine the number of pupils enrolled in an apprenticeship program or a work based learning program designated under section 7.5 of this chapter multiplied by four hundred ninety-seven dollars (\$497).

STEP THREE: Determine the number of pupils enrolled in an introductory program designated under section 7.5 of this chapter multiplied by two hundred ninety-eight dollars (\$298).

STEP FOUR: Determine the number of pupils enrolled in a planning for college and career course under section 7.5 of this chapter at the school corporation that is approved by the department of workforce development multiplied by one hundred



forty-nine dollars (\$149).

STEP FIVE: Determine the number of pupils who travel from the school in which they are currently enrolled to another school to participate in a career and technical education program in which pupils from multiple schools are served at a common location multiplied by one hundred forty-nine dollars (\$149).

(b) This subsection applies to state fiscal years beginning after June 30, 2026. A school corporation's career and technical education enrollment grant for a state fiscal year is the sum of the amounts determined under the following STEPS:

STEP ONE: Determine for each career and technical education program provided by the school corporation:

(A) the number of credit hours of the program (one (1) credit, two (2) credits, or three (3) credits); multiplied by

(B) the number of pupils enrolled in the program; multiplied by

(C) the following applicable amount:

(i) Seven hundred twelve dollars (\$712) for a career and technical education program designated by the ~~department of workforce development~~ **commission for higher education** as a high value level 1 program under section 7.5 of this chapter.

(ii) One thousand sixty-nine dollars (\$1,069) for a career and technical education program designated by the ~~department of workforce development~~ **commission for higher education** as a high value level 2 program under section 7.5 of this chapter.

(iii) Three hundred ninety-nine dollars (\$399) for a career and technical education program designated by the ~~department of workforce development~~ **commission for higher education** as a moderate value level 1 program under section 7.5 of this chapter.

(iv) Five hundred ninety-nine dollars (\$599) for a career and technical education program designated by the ~~department of workforce development~~ **commission for higher education** as a moderate value level 2 program under section 7.5 of this chapter.

(v) Two hundred dollars (\$200) for a career and technical education program designated by the ~~department of workforce development~~ **commission for higher education** as a less than moderate value level 1 program under section 7.5 of this chapter.



(vi) Two hundred ninety-nine dollars (\$299) for a career and technical education program designated by the ~~department of workforce development~~ **commission for higher education** as a less than moderate value level 2 program under section 7.5 of this chapter.

STEP TWO: Determine the number of pupils enrolled in an apprenticeship program or a work based learning program designated under section 7.5 of this chapter multiplied by four hundred ninety-nine dollars (\$499).

STEP THREE: Determine the number of pupils enrolled in an introductory program designated under section 7.5 of this chapter multiplied by Two hundred ninety-nine dollars (\$299).

STEP FOUR: Determine the number of pupils enrolled in a planning for college and career course under section 7.5 of this chapter at the school corporation that is approved by the ~~department of workforce development~~ **commission for higher education** multiplied by one hundred fifty dollars (\$150).

STEP FIVE: Determine the number of pupils who travel from the school in which they are currently enrolled to another school to participate in a career and technical education program in which pupils from multiple schools are served at a common location multiplied by one hundred fifty dollars (\$150).

SECTION 27. IC 20-43-8-16, AS ADDED BY P.L.230-2017, SECTION 25, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. The ~~department of workforce development~~ **commission for higher education** shall adopt rules under IC 4-22-2 that are necessary to implement the duties of the ~~department of workforce development~~ **commission for higher education** under this chapter.

SECTION 28. IC 20-43-16-1, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. As used in this chapter, "grant" means a teacher appreciation grant awarded by the department to a school corporation, ~~or charter a school, or the department of correction~~ under this chapter.

SECTION 29. IC 20-43-16-2.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2.5. As used in this chapter, "school" means the following:

(1) A charter school.

(2) The Indiana School for the Deaf established by IC 20-22-2-1.



(3) The Indiana School for the Blind and Visually Impaired established by IC 20-21-2-1.

SECTION 30. IC 20-43-16-3, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) The teacher appreciation grant program is established to provide grants for each state fiscal year to school corporations, ~~and charter schools,~~ **and the department of correction** to attract, reward, and retain teachers who significantly impact student outcomes.

(b) The department, in consultation with the state board, shall administer the program.

SECTION 31. IC 20-43-16-4, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. To be eligible for a grant under the program, a school corporation, ~~or charter a school,~~ **or the department of correction** must meet the following:

- (1) Apply in a manner prescribed by the department.
- (2) Identify not more than twenty percent (20%) of certified teachers as eligible grant recipients annually based on criteria outlined in section 5 of this chapter.
- (3) Report how each recipient met the criteria outlined in section 5 of this chapter.
- (4) Meet any other requirements established by the department.

SECTION 32. IC 20-43-16-5, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. **(a)** A grant received by a school corporation, ~~or charter a school,~~ **or the department of correction** may only be used to pay stipends within the amounts described in section 8 of this chapter to one (1) or more teachers selected by the school corporation, ~~or charter school,~~ **or department of correction** who:

- (1) have instructed students in a school, ~~or district,~~ **or facility of the department of correction** for at least one (1) school year prior to the grant distribution year;
- (2) maintain employment at the same school, ~~or district,~~ **or facility of the department of correction** at the time of the grant distribution;
- (3) are determined to significantly impact student outcomes using national, state, or local assessment measures; and
- (4) are designated in one (1) of the categories described in section 6 of this chapter.

(b) A grant received by a school corporation, a school, or the department of correction may be used to pay the Federal



Insurance Contributions Act (FICA) and Indiana state teachers' retirement fund costs associated with distributing a stipend under this chapter.

SECTION 33. IC 20-43-16-6, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Grant amounts distributed to a teacher described in section 5 of this chapter must meet the criteria as set forth in this section for:

- (1) a "recognition" stipend;
- (2) an "exemplary" stipend; or
- (3) an "exemplary plus" stipend.

(b) A school corporation, ~~or charter a school,~~ **or the department of correction** must apply the following criteria in evaluating a teacher for a stipend designation under subsection (a):

- (1) For a recognition stipend designation, whether the teacher demonstrates high performance in teaching based on student outcomes.
- (2) For an exemplary stipend designation, whether the teacher:
 - (A) demonstrates high performance in teaching based on student outcomes; and
 - (B) meets one (1) of the following:
 - (i) Mentors or coaches another teacher to improve student outcomes, or provides instructional leadership to improve student outcomes across multiple classrooms.
 - (ii) Serves in a high need or geographic shortage area as determined by the department based on educator supply and demand.
- (3) For an exemplary plus stipend designation, whether the teacher:
 - (A) demonstrates high performance in teaching based on student outcomes;
 - (B) mentors or coaches another teacher to improve student outcomes, or provides instructional leadership to improve student outcomes across multiple classrooms; and
 - (C) serves in a high need or geographic shortage area as determined by the department based on educator supply and demand.

(c) A school corporation, ~~or charter a school,~~ **or the department of correction** may establish additional criteria in evaluating a teacher for a designation under subsection (a).

SECTION 34. IC 20-43-16-7, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS



[EFFECTIVE JULY 1, 2026]: Sec. 7. (a) The department shall create a rubric for use by school corporations, ~~and charter schools,~~ **and the department of correction** under this chapter.

(b) The rubric must include:

- (1) student assessment data if student assessment data is available for the applicable grade level or class; and
- (2) expectations for the roles, responsibilities, and duties of a mentor teacher, which include providing professional development and guidance to new teachers.

SECTION 35. IC 20-43-16-8, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The amount of the stipend that a school corporation, ~~or charter schools~~ **a school, or the department of correction** may distribute to a teacher for a state fiscal year under this chapter must be within the following amounts:

- (1) For a teacher who receives a stipend for a recognition designation, three thousand five hundred dollars (\$3,500).
- (2) For a teacher who receives a stipend for an exemplary designation, five thousand dollars (\$5,000).
- (3) For a teacher who receives a stipend for an exemplary plus designation, seven thousand five hundred dollars (\$7,500).

SECTION 36. IC 20-43-16-10, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) The department may award a grant under this chapter each state fiscal year to a school corporation, ~~or charter~~ **a school, or the department of correction upon the school corporation, school, or department of correction meeting that meets** the requirements of this chapter.

(b) If the total amount to be distributed as teacher appreciation grants for a particular state fiscal year exceeds the amount appropriated by the general assembly for teacher appreciation grants for that state fiscal year, the total amount to be distributed as teacher appreciation grants to school corporations, ~~and charter schools,~~ **and the department of correction** shall be proportionately reduced so that the total reduction equals the amount of the excess.

(c) The department shall distribute all teacher appreciation grants awarded for a state fiscal year to the school corporations, ~~and charter schools,~~ **and department of correction** ~~awarded the grants~~ before April 15 of the applicable state fiscal year.

SECTION 37. IC 20-43-16-11, AS ADDED BY P.L.213-2025, SECTION 198, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. **If** a school corporation, ~~or~~



1 ~~charter a school, or the department of correction that~~ receives a grant
 2 for a state fiscal year under this chapter, ~~it~~ shall do the following:

3 (1) Distribute all stipends from the grant to individual teachers
 4 not later than sixty (60) business days after the date the
 5 department distributes the grant to the school corporation, ~~or~~
 6 ~~charter school, or department of correction.~~

7 (2) Not later than June 30 of the applicable state fiscal year, return
 8 any part of the grant not distributed as stipends to teachers.

9 SECTION 38. IC 20-46-9-22, AS AMENDED BY P.L.68-2025,
 10 SECTION 232, IS AMENDED TO READ AS FOLLOWS
 11 [EFFECTIVE JULY 1, 2026]: Sec. 22. (a) This section:

12 (1) applies to revenue received from a resolution that is approved
 13 by the governing body to impose a referendum levy under section
 14 6 or 7 of this chapter after May 10, 2023, for a school corporation
 15 located in:

- 16 (A) Lake County;
- 17 (B) Marion County;
- 18 (C) St. Joseph County; or
- 19 (D) Vanderburgh County;

20 through the full term of the referendum levy; and

21 (2) does not apply to revenue received from a referendum levy if:

22 (A) the governing body of the school corporation approves the
 23 referendum levy in a resolution adopted under section 6 or 7
 24 of this chapter; and

25 (B) the referendum levy is imposed for the first time with
 26 property taxes first due and payable in a calendar year
 27 beginning after December 31, 2027.

28 (b) The county auditor shall distribute an amount under subsection
 29 (d) to each charter school, excluding virtual charter schools or adult
 30 high schools, that a student who resides within the attendance area of
 31 the school corporation attends if the charter school, excluding virtual
 32 charter schools or adult high schools, elects to participate in the
 33 referendum under section 6(i) of this chapter. The department shall
 34 provide the county auditor with data and information necessary for the
 35 county auditor to determine:

36 (1) which charter schools, excluding virtual charter schools or
 37 adult high schools, are eligible to receive a distribution under this
 38 section; and

39 (2) the number of all students who reside within the attendance
 40 area of the school corporation who are included in the ADM for
 41 each charter school, excluding virtual charter schools or adult
 42 high schools, described in subdivision (1).



(c) The following schools are not eligible to receive a distribution under this section:

- (1) A virtual charter school.
- (2) An adult high school.

(d) For the purposes of the calculations made in this subsection, each eligible school that has entered into an agreement with a school corporation to participate as a participating innovation network charter school under IC 20-25.7-5 is considered to have an ADM that is separate from the school corporation. The amount that the county auditor shall distribute to a charter school, excluding virtual charter schools or adult high schools, under this section is the amount determined in the last STEP of the following STEPS:

STEP ONE: Determine, for each charter school, excluding virtual charter schools or adult high schools, that is eligible to receive a distribution under this section, the number of students who:

- (A) reside within the attendance area of the school corporation; ~~who~~
- (B) are currently included in the ADM of the charter school; **and**
- (C) **receive not more than fifty percent (50%) virtual instruction.**

STEP TWO: Determine the sum of:

- (A) the current ADM count for the school corporation; plus
- (B) the total number of students who:
 - (i) reside within the attendance area of the school corporation; ~~who~~
 - (ii) are currently included in the ADM of a charter school, excluding virtual charter schools or adult high schools; **and**
 - (iii) **do not receive more than fifty percent (50%) virtual instruction.**

STEP THREE: Determine the result of:

- (A) the STEP ONE amount; divided by
- (B) the STEP TWO amount.

STEP FOUR: Determine the result of:

- (A) the STEP THREE amount; multiplied by
- (B) the amount collected by the county auditor during the most recent installment period.

(e) If a charter school receives a distribution under this section, the distribution may be used only for the purposes described in IC 20-40-20-6(a).

SECTION 39. IC 20-51-4-5.5, AS ADDED BY P.L.232-2025, SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 5.5. (a) A parent of an eligible choice scholarship student or an eligible school on behalf of a parent of an eligible choice scholarship student may petition the department to reconsider the ~~eligibility of a choice scholarship student~~ **payment of a choice scholarship for a student** enrolled in the eligible school if the parent has reason to believe that the student was determined ineligible due to ~~enrollment membership~~ data inaccuracies reported by a school. **Petitions must be received by the department not later than thirty (30) days after the date of notification of payment based on the official fall and spring ADM count dates.**

(b) If the department determines that a student described in subsection (a) is eligible for a choice scholarship under this chapter, the department may adjust the ~~enrollment membership~~ count of choice scholarship students for the applicable eligible school.

(c) If the department adjusts a count used for a distribution under this chapter, the department shall adjust subsequent distributions to the eligible school that is affected by the adjusted count, on the schedule determined by the department, to reflect the differences between the distribution that the eligible school received and the distribution that the eligible school would have received if the adjusted count had been used.

SECTION 40. IC 20-51.4-4.5-6.5, AS ADDED BY P.L.127-2024, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6.5. (a) A parent of a career scholarship student or an emancipated career scholarship student may use a CSA annual grant amount received under this chapter for costs related to obtaining a driver's license if the following conditions are met:

(1) The amount used for the costs does not exceed one thousand dollars (\$1,000).

(2) The parent or emancipated CSA student demonstrates proof of hardship, as determined by the department.

(3) A driver's license is a prerequisite for being able to perform the regular functions of the sequence, course, apprenticeship, or program of study, as determined by the department.

(4) Any other criteria that the department considers relevant are satisfied.

(b) A parent of a career scholarship student or an emancipated career scholarship student may use a CSA annual grant amount received under this chapter for costs related to transportation if the following conditions are met:

(1) The amount used for the costs from the CSA annual grant amount does not exceed ~~the following:~~



- 1 (A) ~~A matching amount paid by a CSA participating entity for~~
 2 ~~the transportation costs of the career scholarship student.~~
 3 ~~(B)~~ a total amount of six hundred twenty-five dollars (\$625).
 4 (2) The parent or emancipated CSA student demonstrates proof
 5 of hardship, as determined by the department.
 6 (3) Any other criteria that the department considers relevant are
 7 satisfied.
 8 (c) A CSA annual grant amount received under this chapter may not
 9 be used for the purchase or lease of a motor vehicle (as defined in
 10 IC 4-4-32.2-6).
 11 SECTION 41. IC 21-18-15.1-0.5 IS ADDED TO THE INDIANA
 12 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 13 [EFFECTIVE JULY 1, 2026]: **Sec. 0.5. As used in this chapter,**
 14 **"eligible school" means the following:**
 15 (1) **A charter school.**
 16 (2) **A state accredited nonpublic school (as defined in**
 17 **IC 20-18-2-18.7).**
 18 (3) **A nonpublic school that is accredited by a national or**
 19 **regional accreditation agency that is recognized by the state**
 20 **board of education.**
 21 SECTION 42. IC 21-18-15.1-5, AS ADDED BY P.L.74-2019,
 22 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 23 JULY 1, 2026]: Sec. 5. (a) The teacher residency grant pilot program
 24 fund is established for the purpose of providing funds to school
 25 corporations and ~~charter~~ **eligible** schools for the development and
 26 implementation of teacher residency programs as described in section
 27 6 of this chapter.
 28 (b) The fund consists of the following:
 29 (1) Appropriations made by the general assembly.
 30 (2) Gifts, grants, devises, or bequests made to the commission to
 31 achieve the purposes of the fund.
 32 (c) The commission shall administer the fund.
 33 (d) The expenses of administering the fund shall be paid from
 34 money in the fund.
 35 (e) The treasurer of state shall invest the money in the fund not
 36 currently needed to meet the obligations of the fund in the same
 37 manner as other public funds may be invested. Interest that accrues
 38 from these investments shall be deposited in the fund.
 39 (f) Money in the fund at the end of a state fiscal year does not revert
 40 to the state general fund but remains available to be used for the
 41 purposes of this chapter.
 42 SECTION 43. IC 21-18-15.1-6, AS ADDED BY P.L.74-2019,



SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. The commission may award grants under the pilot program to an applicant that meets the following requirements:

(1) The applicant is a school corporation or **charter eligible** school that has partnered with one (1) approved postsecondary educational institution to establish and implement a teacher residency program.

(2) The applicant submits a teacher residency plan that:

(A) establishes a teacher residency program in which:

(i) program participants receive teacher training under the teacher residency program for a one (1) year period; and

(ii) program participants and teachers who act as mentors to program participants under the teacher residency program receive stipends;

(B) includes the name and contact information of the approved postsecondary educational institution with which the school corporation or **charter eligible** school has partnered; and

(C) includes any other information regarding the teacher residency program that is required by the commission.

(3) Any other requirements established by the commission.

SECTION 44. IC 21-18-15.1-7, AS ADDED BY P.L.74-2019, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. A school corporation or **charter eligible** school that is awarded a grant under section 6 of this chapter:

(1) shall provide stipends to:

(A) program participants; and

(B) teachers who act as mentors to program participants under the teacher residency program; and

(2) may use money from the grant award to pay the approved postsecondary educational institution with which the school corporation or **charter eligible** school has partnered for administrative costs incurred by the approved postsecondary educational institution in developing and implementing the teacher residency program.

SECTION 45. IC 21-18-15.1-8, AS ADDED BY P.L.74-2019, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The commission shall, upon request, provide technical assistance to school corporations, **charter eligible** schools, and approved postsecondary educational institutions participating in the pilot program in the development of competency based curriculum and support systems for program participants.

SECTION 46. IC 21-18-15.1-9, AS AMENDED BY P.L.214-2025,



SECTION 213, IS AMENDED TO READ AS FOLLOWS
[EFFECTIVE JULY 1, 2026]: Sec. 9. (a) The commission shall
annually prepare a report that includes the following:

(1) Information regarding school corporations and **charter eligible**
schools that participate in the pilot program.

(2) The annual retention rate of teachers employed by a school
corporation or **charter eligible** school who completed the school
corporation's or **charter eligible** school's teacher residency
program within the immediately preceding five (5) years.

(3) The number of program participants who were not employed
by a school corporation or **charter eligible** school after completing
the school corporation's or **charter eligible** school's teacher
residency program.

(4) The number of teachers who:

(A) completed a teacher residency program under this chapter
in the immediately preceding five (5) years; and

(B) took leadership roles, as determined by the commission,
during their employment with a school corporation or **charter**
eligible school in Indiana.

(b) Not later than July 1 of each year, the commission shall submit
the report described in subsection (a) to the following:

(1) The governor.

(2) The general assembly in an electronic format under IC 5-14-6.

SECTION 47. IC 21-18-21 IS REPEALED [EFFECTIVE JULY 1,
2026]. (Postsecondary Career and Technical Education).

SECTION 48. IC 21-18.5-5-2, AS AMENDED BY P.L.43-2021,
SECTION 141, IS AMENDED TO READ AS FOLLOWS
[EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The board for proprietary
education consists of the following seven (7) members:

(1) The secretary of education or the secretary's designee.

(2) The executive officer of the commission for higher education
or the executive officer's designee.

(3) Five (5) members **who are members of the public at large**
appointed by the governor.

(b) The members appointed by the governor under subsection (a)
serve for a term of four (4) years.

(c) Not more than three (3) of the members appointed by the
governor may be members of the same political party.

(d) ~~Of the five (5) members appointed by the governor:~~

~~(1) one (1) must have been engaged for a period of at least five~~
~~(5) years immediately preceding appointment in an executive or~~
~~a managerial position in a postsecondary proprietary educational~~



1 institution subject to IC 21-18.5-6;

2 (2) one (1) must have been engaged in administering or managing
3 an industrial employee training program for a period of at least
4 five (5) years immediately preceding appointment; and

5 (3) three (3) must be representatives of the public at large who are
6 not representatives of the types of postsecondary credit bearing
7 proprietary educational institutions to be authorized.

8 For purposes of subdivision (3), an elected or appointed state or local
9 official or a member of a private or public school may not be appointed
10 as a representative of the public at large.

11 (e) (d) An appointment to fill a vacancy occurring on the board for
12 proprietary education is for the unexpired term.

13 SECTION 49. IC 34-30-2.1-287.2 IS ADDED TO THE INDIANA
14 CODE AS A NEW SECTION TO READ AS FOLLOWS
15 [EFFECTIVE JULY 1, 2026]: **Sec. 287.2. IC 20-38-4-8 (Concerning**
16 **members, officers, the executive director, employees, and**
17 **representatives of the interstate teacher mobility compact**
18 **commission).**

19 SECTION 50. [EFFECTIVE UPON PASSAGE] Notwithstanding
20 the June 29, 2026, effective date contained in P.L.213-2025,
21 SECTION 199, the revisor of statutes shall publish IC 20-51-1-4.3,
22 as amended by P.L.213-2025, SECTION 199, effective May 1, 2026.

23 SECTION 51. An emergency is declared for this act.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Education, to which was referred House Bill 1266, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 12, between lines 15 and 16, begin a new paragraph and insert:

"SECTION 11. IC 20-28-5-21, AS AMENDED BY P.L.275-2019, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 21. To be eligible for a career specialist permit to teach in a secondary school, an applicant must meet one (1) of the following:

(1) The applicant:

- (A) has a bachelor's degree with a cumulative grade point average of at least 3.0 on a 4.0 scale (or its equivalent if another grading scale is used) in the content area in which the applicant intends to teach;
- (B) has passed the approved content area examination in the content area in which the applicant intends to teach;
- (C) demonstrates proficiency in the area of pedagogy under procedures prescribed by the department; and
- (D) has, within the immediately preceding five (5) years, at least four thousand (4,000) clock hours of documented occupational experience in the content area in which the applicant intends to teach.

(2) The applicant:

- (A) meets the requirements under subdivision (1)(A) or (1)(B);
- (B) demonstrates proficiency in the area of pedagogy under procedures prescribed by the department; and
- (C) has, within the immediately preceding seven (7) years, at least five thousand (5,000) clock hours of documented occupational experience in the content area in which the applicant intends to teach.

(3) The applicant:

- (A) is at least twenty-one (21) years of age;
- (B) will teach aviation ground instruction; and
- (C) meets at least one (1) of the following conditions:
 - (i) The applicant has passed the Federal Aviation Administration advanced ground instructor and fundamentals of instruction tests and been issued a valid Federal Aviation Administration advanced ground instructor certificate.
 - (ii) The applicant possesses a valid Federal Aviation



Administration certified flight instructor or certified flight instructor instrument certificate.

(4) The applicant:

(A) is at least twenty-one (21) years of age;

(B) will teach flight instruction; and

(C) possesses a valid Federal Aviation Administration:

(i) certified flight instructor; or

(ii) certified flight instructor instrument;

certificate with the appropriate Federal Aviation Administration aircraft ratings for the flight instruction being provided."

Page 12, line 21, delete "granted" and insert "**renewed**".

Page 18, line 1, delete "conducted." and insert "**conducted at no cost to a parent of a student or student.**".

Page 19, line 22, delete "prekindergarten through grade 8" and insert "**kindergarten through grade 5**".

Page 19, line 27, delete "thirty (30)" and insert "**twenty (20)**".

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1266 as introduced.)

BEHNING

Committee Vote: yeas 10, nays 0.

